

25STCV15917 25STCV15917

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-09-16

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Case Number: 25STCV15917 Hearing Date: September 16, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

JUNIOR PROPHETE,

Plaintiff,

vs.

LOS ANGELES ENT, et al.,

Defendant.

Case No.:

25STCV15917

Hearing Date:

September 16, 2026

Hearing Time: 10:00 a.m.

ORDER RE:

PLAINTIFF JUNIOR

PROPHETE'S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS AND ELECTRONICALLY STORED INFORMATION

Plaintiff Junior Prophete ("Plaintiff") moves for an order compelling defendant Los Angeles Center for Ear, Nose, Throat and Allergy ("LACENTA") to comply with the Deposition Subpoena for Production of Business Records served on LACENTA on June 22, 2026.

Plaintiff's motion will be continued to a new date as set forth below. NO
HEARING WILL TAKE PLACE ON SEPTEMBER 16, 2026.

Pursuant to the

Court's power to "amend and control its process and orders so as to make them conform to law and justice" (Code Civ. Proc., § 128, subd. (a)(8)), the Court orders the parties in this case to participate in a meet and confer with the Court ("Informal Discovery Conference" or "IDC"). Lead or other designated counsel for the parties with full authority are ordered to participate in person in an IDC.

After consulting with opposing counsel regarding available dates, Plaintiff must make a prompt reservation for the IDC using the Court's online reservation system. Plaintiff must file Dept. 508's one-page IDC form in the department seven days prior to the IDC, and the responding parties may file the same form in the department setting forth a response three days prior to the IDC.

Once Plaintiff confirms an IDC date, Plaintiff must use the Court's online reservation system to continue the motion to a post-IDC discovery hearing date. The parties are ordered to have with them whatever materials are needed to make the IDC session productive and successful. Prior to the IDC date, Plaintiff and lead or other designated counsel for the parties, with full authority, are to meet and confer, in person or via telephone in a further attempt to resolve as many of the issues as possible before the IDC. (See Cal. Rules of Court, rule 3.670(f)(2).) If the parties resolve their discovery disputes before the IDC date, Plaintiff is ordered to take both the IDC and the motion off calendar as soon as possible.

The Court notes that the declaration of Plaintiff in support of the motion does not indicate that there has been "a reasonable and good faith attempt, either in person, by telephone, or by

videoconference, to informally resolve each issue presented by the motion.”
(Code Civ. Proc., § 2016.040, subd. (a).) Moreover, the declaration of
Plaintiff is silent on whether Plaintiff met and conferred with defendant
LACENTA “regarding the retention of a certified shorthand reporter to report
the hearing on the motion.” (Code Civ. Proc., § 2016.040, subd. (b).) Additionally,
the memorandum of points and authorities
is not signed and is therefore defective. A self-represented party must sign a
memorandum of points and authorities in support of a motion. (Code Civ. Proc.,
§ 128.7, subd. (a).)

Plaintiff is ordered to give notice of this Order.

DATED: September
16, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court